

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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BRIAN JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER RYAN FLANAGAN, Shield No. 7579, POLICE OFFICER PAULA SERNA, Shield No. 11099, SERGEANT DAVID DUGAN, Shield No. 2599, POLICE OFFICER JAMES TAYLOR, Shield No. 23991, and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:

Location of Incident

Plaintiff designates New York County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 3, 2015

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER RYAN FLANAGAN, Shield No. 7579, Midtown South Precinct,
357 West 35th Street, New York, NY, 10001
POLICE OFFICER PAULA SERNA, Shield No. 11099, Midtown South Precinct, 357
West 35th Street, New York, NY, 10001
SERGEANT DAVID DUGAN, Shield No. 2599, Midtown South Precinct, 357 West
35th Street, New York, NY, 10001
POLICE OFFICER JAMES TAYLOR, Shield No. 23991, Midtown South Precinct, 357
West 35th Street, New York, NY, 10001.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, BRIAN JOHNSON, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and New York State law. On December 3, 2012, at approximately 2:00 p.m., plaintiff, Brian Johnson, while lawfully present in the vicinity of 33rd Street and 7th Avenue, New York, New York, was subject to an unlawful stop, question, frisk, search, seizure, detention, false imprisonment, false arrest, by the defendant New York City police officers. Thereafter, the police officers maliciously prosecuted plaintiff, denied plaintiff his due process rights and denied plaintiff a right to a fair trial by initiating a prosecution against him, without probable cause by falsifying evidence, providing false, misleading and/or incomplete information to the DA's Office and by signing a Criminal Court complaint which contained false information about plaintiff. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, denied plaintiff his due process rights and denied plaintiff the right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff BRIAN JOHNSON is a resident of the State of New York.

3. POLICE OFFICER RYAN FLANAGAN, Shield No. 7579, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER RYAN FLANAGAN, Shield No. 7579 was at all times relevant herein, assigned to the Patrol Borough Manhattan South Precinct.

5. POLICE OFFICER RYAN FLANAGAN, Shield No. 7579, is being sued in his individual and official capacity.

6. POLICE OFFICER PAULA SERNA, Shield No. 11099, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER PAULA SERNA, Shield No. 11099 was at all times relevant herein, assigned to the Patrol Borough Manhattan South Precinct.

8. POLICE OFFICER PAULA SERNA, Shield No. 11099, is being sued in her individual and official capacity.

9. SERGEANT DAVID DUGAN, Shield No. 2599, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT DAVID DUGAN, Shield No. 2599, was at all times relevant herein, assigned to the Patrol Borough Manhattan South Precinct.

11. SERGEANT DAVID DUGAN, Shield No. 2599, is being sued in his individual and official capacity.

12. POLICE OFFICER JAMES TAYLOR, Shield No. 23991, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER JAMES TAYLOR, Shield No. 23991, was at all times relevant herein, assigned to the Patrol Borough Manhattan South Precinct.

14. POLICE OFFICER JAMES TAYLOR, Shield No. 23991, is being sued in his individual and official capacity.

15. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

19. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

20. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK, in compliance with General Municipal Law Section 50, and has complied with all conditions precedent to file a lawsuit against the City of New York.

21. More than thirty (30) days have elapsed since the Notice of Claim was filed with THE CITY OF NEW YORK and the City of New York has failed to pay or adjust the claim.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On December 3, 2012, at approximately 2:00 p.m., plaintiff was lawfully present in the vicinity of 33rd Street and 7th Avenue, New York, New York, when the individually named defendants forcefully and unlawfully stopped, questioned, frisked, searched, and falsely arrested plaintiff without reasonable suspicion, probable cause or any legal justification.

25. Plaintiff was lawfully standing on a public sidewalk when suddenly the individually named defendants forcefully and unlawfully stopped, questioned, frisked, searched, and falsely arrested plaintiff without reasonable suspicion, probable cause or any legal justification.

26. Plaintiff complied with all of the defendant police officers' orders.

27. At no time were any illegal guns, drugs or contraband found on plaintiff's person, or in plaintiff's possession, custody, or control.

28. At no time did plaintiff violate any law, or commit any crime or violate the law in any way.

29. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

30. Nevertheless, the individually named defendants unlawfully handcuffed and unlawfully arrested plaintiff without legal justification or probable cause.

31. Defendants transported plaintiff to the 14th precinct against his will for arrest processing.

32. Upon arrival at the 14th precinct, plaintiff Brian Johnson was detained in a holding cell by the defendants, where defendants unlawfully held plaintiff without reasonable suspicion or probable cause.

33. The defendant NYPD officers provided the New York County District Attorney's Office with false, misleading, and incomplete information regarding their reasons to believe that plaintiff committed a crime.

34. On or about December 4, 2012, after being unlawfully detained by defendants for several hours at the 14th Precinct, plaintiff was transported to Manhattan Central Booking.

35. A criminal prosecution was initiated by defendants against plaintiff without probable cause, based upon the false, misleading, and/or incomplete facts and evidence communicated to the District Attorney's Office by the defendant NYPD officers and the false, misleading and/or incomplete facts alleged in the criminal court complaint signed and sworn by Defendants, falsely charging plaintiff with Penal Section 170.25 – Criminal Possession of a Forged Instrument.

36. On December 4, 2012, after being detained for approximately 24 hours in government custody and after being unlawfully detained at Manhattan Central Booking for many hours in filthy and deplorable conditions, plaintiff was arraigned and bail was set in the amount of \$10,000.

37. Plaintiff was unable to post bail, and therefore was remanded to the New York City Department of Correction custody.

38. On or about December 4, 2012, plaintiff was transported to the Manhattan Detention Center.

39. Plaintiff was detained for approximately 3½ months at the Manhattan Detention Center until he posted bail and was released from the Manhattan Detention Center on March 21, 2013.

40. Plaintiff was forced to return to Court on several occasions to address the false criminal charges brought against him by defendants.

41. On May 6, 2014, all criminal charges against plaintiff were dismissed and terminated in his favor.

42. As a result of the unlawful arrest and malicious prosecution, plaintiff lost his job as an exterminator.

43. Further, the unlawful arrest and malicious prosecution caused plaintiff to suffer high blood pressure, and severe emotional distress.

44. Defendant City of New York negligently trained its supervisors and officers to follow an unconstitutional legal standard when stopping, questioning, frisking, searching, and arresting individuals. As a result of the City of New York and the New York City Police Department's negligent training and supervision of its officers and employees regarding stop, question, and frisk procedures and arrests, plaintiff sustained the damages herein alleged.

45. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

46. As a result of defendant City of New York and the New York City Police Department's policy of unlawfully stopping, questioning, frisking and searching individuals, without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference to the fact that New York City Police Officers routinely engage in this type of misconduct and unlawful behavior, and that there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason.

47. A Federal Court has entered judgment against the City of New York and the NYPD after a Federal trial covering the time period of the underlying incident in this case and found that the City of New York and the NYPD had a policy, practice or custom, wherein New York City Police Officers illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or

probable cause to believe the individual violated or about to violate any law or ordinance. See Floyd v. City of New York, 08-Civ.-1034 (SAS), Opinion and Order (S.D.N.Y. Aug. 12, 2013).

48. As a result of defendant City of New York and the New York City Police Department's policy practice, custom, or deliberate indifference to stopping, questioning, frisking and searching individuals, without probable cause or reasonably articulable suspicion, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

49. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law, but did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and denial of fair trial, and Fifth Amendment due process rights to plaintiff.

50. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of due process, and denial of a fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma, and economic damages.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted, without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the United States Constitution. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search plaintiff.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The conduct of defendants in stopping and frisking plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

65. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

67. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional and statutory rights under the New York State law.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

70. Plaintiff repeats and realleges paragraphs 1 through 69 as if fully set forth herein.

71. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution.

72. Defendants commenced and continued a criminal proceeding against plaintiff.

73. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

74. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

75. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment Right to Due Process

and Right to a Fair Trial

76. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 75 with the same force and effect as if fully set forth herein.

77. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

78. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

79. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

80. In withholding/creating false evidence against plaintiff Brian Johnson and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

81. As a result of the foregoing, plaintiff Brian Johnson, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Brian Johnson. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

87. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

NINTH CAUSE OF ACTION

Failure to Intervene

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

93. Defendants failed to intervene to prevent the unlawful conduct described herein.

94. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

TENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Unconstitutionally Stopping, Questioning, Frisking, and Searching Individuals in violation of the Fourth and Fourteenth Amendments to the United States Constitution

95. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, search, and arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

97. A Federal Court has already entered judgment against the City of New York after a trial and found that for many years, including the time period of August 11, 2013, the date plaintiff was arrested, defendant City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See Floyd v. City of New York, 08-Civ. -1034 (SAS), Opinion and Order (S.D.N.Y. Aug. 12, 2013).

98. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally stopping, questioning, frisking and searching individuals, which are conducted without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these stops and searches without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

99. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Fourth Amendment to the Constitution of the United States.

100. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of Yonkers, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless stops, seizures, questions, frisks, searches, and arrests, for trespass into a privately owned apartment building.

101. The City of New York has acted with deliberate indifference to the Fourth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of his rights under the Fourth and Fourteenth Amendments to the United States Constitution.

102. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

103. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff BRIAN JOHNSON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 3, 2015

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
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West 35th Street, New York, NY, 10001

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is that Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
August 3, 2015

/s/
STUART E. JACOBS, Esq.